IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Court of Appeal Case No.-
CA/PHC/37/2022

HC (Badulla) Case No.-
Revision No.49/16

MC (Bandarawela) Case No.-
66478

T.P. Anura Hemakumara,
Divisional Secretary, Haputale.

Petitioner

Vs.

Samarakoon Mudiyanselage Mithrapala,
No. 126, Welimada Road,
Bandarawela.

Respondent

And between

Samarakoon Mudiyanselage Mithrapala,
No. 126, Welimada Road,
Bandarawela.

Respondent- Petitioner

Vs.

Divisional Secretary,
Divisional Secretary, Haputale.

Substituted Petitioner- Respondent

And now between

Samarakoon Mudiyanselage Mithrapala,
No. 126, Welimada Road,
Bandarawela.

Respondent – Petitioner- Appellant

Vs.

Divisional Secretary,
Divisional Secretary, Haputale.

Substituted Petitioner- Respondent-
Respondent

Before:	Damith Thotawatte, J. K.M.S. Dissanayake, J.
Counsels:	Kumar Dunusinghe with Punyajith Dunusinghe instructed by Manouri Herath for the Appellant. Pulina Jayasuriya, SC for the Respondent.
Argued:	06.07.2026
Written submissions tendered on:	02.07.2026 by Respondent – Petitioner- Appellant.
Judgment Delivered:	03.11.2026

Thotawatte, J.

Introduction

This appeal is preferred by the Respondent-Petitioner-Appellant (hereinafter sometimes referred to as “the Appellant”) against the order dated 16.12.2021 of the learned High Court Judge of the Provincial High Court of the Uva Province holden at Badulla, dismissing with costs the Appellant’s application in revision bearing No. 49/2016. By that application, the Appellant sought to revise the order dated 29.05.2015 made by the learned Magistrate of Bandarawela in Case No. 66478 under section 10(1) of the State Lands (Recovery of Possession) Act, No. 7 of 1979, as amended (hereinafter sometimes referred to as “the Act”). The Magistrate’s order directed the ejectment of the Appellant and his dependents, if any, from State land situated at Eranawela, Bandarawela.

The Substituted Petitioner-Respondent-Respondent is the Divisional Secretary of the Haputale Divisional Secretary's Division (hereinafter referred to as "the Respondent" or "the Divisional Secretary"), who, as competent authority, instituted the proceedings in the Magistrate's Court.

Factual Matrix

The land which is the subject matter of these proceedings is described in the schedule to the application for ejectment as a State land in extent about 10 perches, situated within Lot Nos. 98 and 103 in F.V.P. 193, in Grama Niladhari Division No. 64-B, Eranawela, in the Haputale Divisional Secretary's Division of the Badulla Administrative District.

The Divisional Secretary, being of the opinion that the said land is State land and that the Appellant was in unauthorised possession or occupation thereof, issued a quit notice under section 3 of the Act. According to the Appellant's written submissions, the quit notice is dated 03.04.2014. The Appellant did not vacate the land on or before the date specified therein.

Upon such non-compliance, the Divisional Secretary filed an application for ejectment in the Magistrate's Court of Bandarawela under section 5 of the Act, substantially in Form B, supported by an affidavit substantially in Form C and accompanied by a copy of the quit notice in Form A.

The Appellant's position, both in the Magistrate's Court and before this Court, has not been that he holds a permit or other written authority of the State. His position is that the land forms part of a road reservation; that, for that reason, the Divisional Secretary is not the competent authority in respect of it; and that the land has not been adequately described. In support, he relied on the judgment of the District Court of Bandarawela dated 28.07.2004 in Case No. L/1294, marked "R1", which, according to the Appellant, holds that the land in his possession forms part of the road reservation.

Progression of the Litigation

The Magistrate's Court of Bandarawela

At the Inquiry before the Magistrate's Court of Bandarawela, the Appellant had raised two objections. First, that the land had not been described with sufficient particularity to enable it to be identified, and that the Divisional Secretary was therefore not entitled to maintain the application. Secondly, without prejudice to the first objection, he contended that the land forms part of a road reservation, that authority to proceed in respect of it had been vested in the Executive Engineer of the Road Development Authority, and that the Divisional Secretary therefore had no right to seek an order of ejectment.

By order dated 29.05.2015, the learned Magistrate held:

a) that the quit notice, the application for ejectment and the affidavit had been tendered substantially in Forms A, B and C, that the quit notice had been duly served, and that the Appellant had not challenged those documents;
b) that the schedule set out the administrative district, the Divisional Secretary's Division, the Grama Niladhari Division, the plan number, the lot numbers and the extent of the land, that the Appellant's own document "R1" described the land in the same manner, and that the land was capable of clear identification;
c) that, by virtue of section 18 of the Act read with sections 4(1) and 7(4) of the Transfer of Powers (Divisional Secretaries) Act No. 58 of 1992, the Divisional Secretary was entitled to institute proceedings in respect of State land within his Division, and that, on the authority of ***Farook v. Gunewardene, Government Agent, Amparai***[1], the Magistrate could not question the competent authority's opinion; and
d) that the Appellant had not established possession or occupation upon a valid permit or other written authority of the State, as contemplated by section 9(1) of the Act.

The learned Magistrate accordingly made order under section 10 of the Act directing the ejectment of the Appellant and his dependents, if any, from the land described in the schedule.

Being dissatisfied with the order of the learned Magistrate, the Appellant invoked the revisionary jurisdiction of the Provincial High Court of the Uva Province holden at Badulla substantially on the grounds that the competent authority in respect of the scheduled lands was the Road Engineer, that the Divisional Secretary had therefore acted in error and that the order of the learned Magistrate was wrong in fact and in law.

The learned High Court Judge, relying on ***Farook v. Gunewardene***[2], on the judgment of the Supreme Court in ***Divisional Secretary, Kalutara and Another Vs. Kalupahana Mestrige Jayatissa***[3], and on the judgment of this Court in ***Udayasiri Kariyawasam v. J. M. R. Bandara Jayasundara***[4], held that the Magistrate had no jurisdiction to inquire into the competence of the competent authority, that the learned Magistrate had acted in accordance with law, and that no miscarriage of justice warranting the exercise of

[1] (1980) 2 Sri LR 243 Application No. 65-80, decided 13.11.1980.
[2] *Ibid*.
[3] SC Appeal Nos. 246, 247, 249 & 250-14, [C.A. (PHC) Application No. 193-2011], decided on 04.08.2017.
[4] C.A.(PHC) No. 56/2013, decided on 06.08.2018.

revisionary powers had been established. The application was dismissed with costs on 16.12.2021.

Grounds of Appeal

Being aggrieved by the order of the learned High Court Judge, the Appellant has filed the present appeal to this Court, *inter alia,* on the following grounds:

a) The learned High Court Judge erred in law in upholding the proceedings without properly determining whether the Divisional Secretary was competent to institute them. The Appellant contends that, because the land forms part of a road reservation, sections 52 and 92 of the National Thoroughfares Act No. 40 of 2008 confer the relevant authority on the Road Development Authority.
b) The learned Judge failed to consider and give due weight to material evidence concerning the land's status, identity and extent. This included the judgment in District Court Case No. L/1294, which found that the land formed part of a road reservation, and Plan No. 951, which depicts 37.9 perches within the boundaries by which the quit notice describes approximately 10 perches.
c) The learned Judge erred in finding that no exceptional circumstances had been shown. The Appellant relies on the alleged lack of authority to institute the proceedings and the discrepancy between the extent shown in Plan No. 951 and the extent stated in the quit notice.
d) The Appellant alleges that the judgment was affected by bias in favour of the Respondent. No particulars of that allegation are stated in the grounds provided.

The Statutory Scheme

The scheme of the Act sets the limits within which the Magistrate, and the courts exercising revisionary and appellate jurisdiction, must operate.

Section 3(1) empowers a competent authority to serve a quit notice where he is of the opinion that any land is State land and that any person is in unauthorised possession or occupation of it. In the event the person noticed fails to vacate the said land Section 5(1) allows "any competent authority (whether he is or not the competent authority who issued or exhibited such notice)" to apply to the Magistrate's Court in Form B for an order of ejectment. The application must state that the applicant is a competent authority and that the land is, in his opinion, State land. Section 5(2) requires these matters to be verified by an affidavit in Form C.

Under section 9(1), at a "show cause" inquiry before the learned Magistrate the occupier may not contest any matter stated in the application. He may only establish that he holds a valid permit or other written authority of the State that is in force. Section 9(2) prevents the Magistrate from calling for evidence from the competent authority and Section 10(1) requires the Magistrate to order ejectment forthwith if he is not satisfied that the person showing cause is entitled to possession. Section 10(2) excludes any appeal against that order.

Section 18 defines "competent authority" as "the Government Agent, an Additional Government Agent or an Assistant Government Agent of the district in which the land is situated". The definition then extends, by paragraph (h), to "the head of any other Government Department or Institution being a department or institution created by law, where such land is under the control of such department or institution". By section 4(1) of the Transfer of Powers (Divisional Secretaries) Act No. 58 of 1992, references in any written law to the Government Agent and Assistant Government Agent are to be read as references to the Divisional Secretary.

Section 17 provides that this Act prevails in the event of a conflict or inconsistency with any other written law, while preserving the State's right to proceed under the provisions of any other law to recover State land, establish title to it, or claim relief in respect of it.

In ***Ihalapathirana v. Bulankulame, Director-General, U.D. A***[5], His Lordship S. N. Silva, J. (as he then was) described the object of the Act as being "to secure possession of such land by an expeditious machinery without recourse to an ordinary civil action". The occupier's right to be heard before the Magistrate is confined to proof of a permit, and claims to title are left to an action under section 12 of the Act.

Analysis

The Scope of an Appeal Against a Revisionary Order

The order of ejectment was not appealable. The Appellant's remedy in the Provincial High Court was therefore revision, which is a discretionary remedy. It is settled law that revisionary jurisdiction is exercised only where the order complained of is shown to be

[5] (1988) 1 Sri LR 416.

illegal or to have occasioned a miscarriage of justice, and where exceptional circumstances are shown which shock the conscience of the court[6].

At the notice stage, the applicant must disclose a *prima facie* sustainable case warranting full investigation, including a *prima facie* case of exceptional circumstances. Issuing notice does not establish an entitlement to relief.

Exceptional circumstances may warrant the court's consideration of a revision application, but they do not by themselves justify setting aside the impugned order. To obtain relief, the applicant must establish a material error or illegality that has caused a miscarriage of justice or comparable failure of justice. Although these considerations may overlap, they are distinct. In this case, the High Court Judge declined to intervene because no such miscarriage of justice had been established.

In an appeal against an order of the Provincial High Court made in the exercise of its revisionary jurisdiction, this Court's task is to examine the correctness, legality and propriety of the High Court Judge's exercise of that jurisdiction. This Court is not called upon to rehear the application before the Magistrate as if it were a direct appeal from the Magistrate's order. Therefore, what needs to be considered is whether the learned High Court Judge correctly considered the requirements for revisionary intervention.

Whether the Divisional Secretary was the Competent Authority

The Appellant's principal contention is that, because the land forms part of a road reservation, the competent authority is an officer of the Road Development Authority and not the Divisional Secretary. In my view, this contention fails for several independent reasons.

At an inquiry under section 9 of the State Lands (Recovery of Possession) Act, the summoned occupier cannot defeat the section 5 application simply by arguing that the land belongs to, or is controlled by, a different State entity and that the applicant therefore lacked authority to issue the quit notice. The inquiry is confined to whether the occupier has a valid permit or other written authority of the State, granted under written law and still in force, authorising that occupation. Sections 9(1) and 9(2) also restrict the Magistrate from examining the other matters stated in the application or calling for supporting evidence from the competent authority.

[6] *Rustom v. Hapangama & Co.* [1978–79] 2 Sri LR 225; *Hotel Galaxy (Pvt) Ltd v. Mercantile Hotels Management Ltd* [1987] 1 Sri LR 5; *Dharmaratne v. Palm Paradise Cabanas Ltd* [2003] 3 Sri LR 24.

The Court of Appeal addressed this point in ***Algewaththage Kasun Sanjaya v. Sri Lanka Ports Authority and Another***[7], and connected cases. It held that an objection that the land belonged to another State department, and that the applicant was not the competent authority, could not be determined under the section 9 inquiry; that challenge had to be pursued in appropriate proceedings.

The learned High Court Judge also relied on ***Udayasiri Kariyawasam v. J. M. R. Bandara Jayasundara***[8], in which this Court held that the Magistrate's Court had no jurisdiction to inquire into the competent authority's competence.

This principle is also supported by ***Namunukula Plantations PLC v. Nimal Punchihewa***[9]. The Court held that, in proceedings under the Act, the person summoned could not challenge before the Magistrate that the applicant was not the competent authority. Such a challenge had to be brought in appropriate proceedings. Citing ***Dayananda v. Thalwatte***[10], the Court observed that a competent authority's determination embodied in a quit notice may be challenged by a properly constituted application for certiorari, brought separately from revision proceedings.

Transfer of Powers (Divisional Secretaries) Act No. 58 of 1992

Even if the question were open, the Appellant's contention would not succeed. Section 18 of the State Lands (Recovery of Possession) Act defines a "competent authority" in relation to any land as the Government Agent, Additional Government Agent or Assistant Government Agent of the district in which the land is situated, and provides that the term "includes" other authorities in the circumstances specified in that section. Where section 4 of the Transfer of Powers (Divisional Secretaries) Act, No. 58 of 1992, has been brought into operation in the relevant Division, those references are read as references to the Divisional Secretary of that Division. The Court of Appeal applied that substitution in ***Divisional Secretary, Divisional Secretariat, Kundasale, Manikhinna v. Jenudeen Buhardeen***[11].

The word "includes" adds the authorities listed in section 18 to the definition; it does not, by itself, exclude the Divisional Secretary where another department or institution also controls the land. That reading is consistent with section 5(1), which permits any competent authority to apply for ejectment, whether or not that authority issued the

[7] CA/CPA/0047/2025, decided on 12.12.2025.
[8] CA (PHC) No. 56/2013, decided 06.08.2018.
[9] CA (PHC) APN 29/2016, decided on 09.07.2018.
[10] [2001] 2 Sri LR 73.
[11] CA (PHC) No. 140/2013, decided on 10.10.2019.

quit notice. Section 52 of the National Thoroughfares Act, No. 40 of 2008, similarly provides that, in relation to roads, public roads or national highways to which that Act applies, "competent authority" under the State Lands (Recovery of Possession) Act is deemed to include the specified officers of the Road Development Authority. It does not expressly make those officers the exclusive competent authorities or displace the Divisional Secretary's authority under section 18. The Appellant has therefore not established that the cited provisions preclude the Divisional Secretary from acting as a competent authority in this case.

The Identity and the Extent of the Land

The Appellant now argues that the land he occupies is different from the land in the quit notice. He relies on Plan No. 951, which shows 37.9 perches within the same boundaries, while the notice states an approximate extent of 10 perches. This discrepancy was not raised before the Magistrate or the Provincial High Court, or in the Petition of Appeal. It appears for the first time in written submissions before this Court and depends on facts not previously put in issue.

Kandiah v. Abeykoon[12] and ***Kankanam Pathiranage Ariyawathie v. Divisional Secretary, Kataragama***[13] require compliance with particulars that the Act and its prescribed forms make essential to the quit notice, application and supporting affidavit; omission of such a particular may undermine a statutory safeguard and the basis for ejectment. But strict compliance does not make every error fatal. The Court explained in ***Jayalakshmi Weherabandawatta v. Basnayake Mudiyanselage Rasika Deepani Basnayake***[14] that the alleged defect must be identified and assessed by reference to the requirement's purpose and effect. Thus, in ***Garu Wahampurage Nimal Sirisena v. J.M.C. Priyadarshani and others***[15], mislabeling an application as Form C did not invalidate it because its contents complied with Form B and no mandatory particular was omitted. Similarly, ***Priyankara Vithanalage Dayananda Kolabagama v. Sunethra Nallaperuma Dissanayake***[16], as applied in ***Sinniah Amirthalingam Delvin v. J.M.C. Priyadharshani and others***[17], supports the conclusion that a separate boundary plan or exact extent is unnecessary where the land is otherwise sufficiently identified. The same approach was taken in ***Kadirawel Seelawathie v. A.S. Anura Sathurusinghe and others***[18], where it was

[12] *Sriskantha's Law Reports*, Vol. IV, p. 96 (also referenced as *Kandaiya v. Abeykoon*, 1986 (3) CALR 41).

[13] CA (PHC) 102/2011, decided on 30.09.2014.

[14] CA (PHC) 153/2023, decided on 08.09.2026.

[15] CA (PHC) 188/2022, decided 08.10.2026.

[16] CA (PHC) 52/2010, decided 27.09.2011.

[17] CA (PHC) 138/2023, decided on 20.10.2026.

[18] CA (PHC) 64/2021, decided on 20.02.2026.

held that a difference between the extent in the notice and the application was not automatically fatal.

In the instant case, the schedule identifies the land by its administrative divisions, plan and lot numbers, approximate extent and boundaries. The Appellant's own document, R1, describes the land by the same boundaries. Since those boundaries are not disputed, the difference in the approximate extent does not prevent the land from being identified or the order from being executed. The description in the section 5 application is also not open to challenge at the section 9 inquiry.

Any claim by the Appellant to ownership of all or part of the land must be determined in a vindication action under section 12. The section 9 inquiry is not the forum for deciding title or the land's precise extent.

Conclusion

The learned Magistrate's order discloses no illegality and has occasioned no miscarriage of justice. The learned High Court Judge was correct in declining to exercise revisionary jurisdiction.

The appeal is accordingly dismissed subject to costs fixed at Rs. 50,000/- to be paid by the Appellant to the State. The order of the learned High Court Judge of the Provincial High Court of the Uva Province holden at Badulla dated 16.12.2021 in Revision Application No. 49/2016, and the order of ejectment made by the learned Magistrate of Bandarawela dated 29.05.2015 in Case No. 66478, are affirmed.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal